



INDIAN POLITY



- **CIC AND SIC**
- **CVC**



FRE
CA
S



MODULE – 106

INFORMATION COMMISSION

CONDITIONS	CENTRAL INFORMATION COMMISSION	STATE INFORMATION COMMISSION
Established under	Right to Information Act (2005)	----Same----
What is it about?	- The Central Information Commission is a high-powered independent body which inter alia looks into the complaints made to it and decide the appeals. - It entertains complaints and appeals pertaining to offices, financial institutions, public sector undertakings, etc., under the Central Government and the Union Territories.	- The State Information Commission is a high-powered independent body which inter alia looks into the complaints made to it and decide the appeals. - It entertains complaints and appeals pertaining to offices, financial institutions, public sector undertakings, etc., under the concerned state government.
Composition	Consists of a Chief Information Commissioner and not more than ten Information Commissioners	Consists of a State Chief Information Commissioner and not more than ten State Information Commissioners
Appointed by	President	Governor

INFORMATION COMMISSION

CONDITIONS	CENTRAL INFORMATION COMMISSION	STATE INFORMATION COMMISSION
Appointment committee	Committee consisting of the Prime Minister as Chairperson, the Leader of Opposition in the Lok Sabha and a Union Cabinet Minister nominated by the Prime Minister	Committee consisting of the Chief Minister as Chairperson, the Leader of Opposition in the Legislative Assembly and a State Cabinet Minister nominated by the Chief Minister
Qualifications	▪ They should be persons of eminence in public life with wide knowledge and experience in law, science and technology, social service, management, journalism, mass media or administration and governance. ▪ They should not be a Member of Parliament or Member of the Legislature of any State or Union Territory. ▪ They should not hold any other office of profit or connected with any political party or carrying on any business or pursuing any profession.	▪ They should be persons of eminence in public life with wide knowledge and experience in law, science and technology, social service, management, journalism, mass media or administration and governance. ▪ They should not be a Member of Parliament or Member of the Legislature of any State or Union Territory. ▪ They should not hold any other office of profit or connected with any political party or carrying on any business or pursuing any profession.

INFORMATION COMMISSION

CONDITIONS	CENTRAL INFORMATION COMMISSION	STATE INFORMATION COMMISSION
Tenure	The Chief Information Commissioner and an Information Commissioner hold office for a term of 5 years or until they attain the age of 65 years , whichever is earlier. They are not eligible for reappointment	The State Chief Information Commissioner and a State Information Commissioner hold office for a term of 5 years or until they attain the age of 65 years, whichever is earlier. They are not eligible for reappointment
Removed by	President	Governor
Removal conditions	a) if he is adjudged an insolvent; or b) if he has been convicted of an offence which (in the opinion of the President) involves a moral turpitude; or c) if he engages during his term of office in any paid employment outside the duties of his office; or d) if he is (in the opinion of the President) unfit to continue in office due to infirmary of mind or body; or e) if he has acquired such financial or other interest as is likely to affect prejudicially his official functions. In addition to these, the President (Governor) can also remove the Chief Information Commissioner (state Chief Information Commissioner) or any Information Commissioner (or state Information Commissioner) on the ground of proved misbehaviour or incapacity. However, in these cases, the President (Governor) has to refer the matter to the Supreme Court for an enquiry. If the Supreme Court, after the enquiry, upholds the cause of removal and advises so, then the President (or Governor) can remove him.	

INFORMATION COMMISSION

CONDITIONS	CENTRAL INFORMATION COMMISSION	STATE INFORMATION COMMISSION
Salary and service conditions	- The salary, allowances and other service conditions of the Chief Information Commissioner are similar to those of the Chief Election Commissioner and that of the Information Commissioner are similar to those of an Election Commissioner. - But, they cannot be varied to his disadvantage during service.	- The salary, allowances and other service conditions of the State Chief Information Commissioner are similar to those of an Election Commissioner and that of the State Information Commissioner are similar to those of the Chief Secretary of the state government. - But, they cannot be varied to his disadvantage during service.
Duties of the commission	It is the duty of the Commission to receive and inquire into a complaint from any person: - who has not been able to submit an information request because of non-appointment of a Public Information Officer; - who has been refused information that was requested; - who has not received response to his information request within the specified time limits; - who thinks the fees charged are unreasonable; - who thinks information given is incomplete, misleading or false; and - any other matter relating to obtaining information.	

CONDITIONS	CENTRAL INFORMATION COMMISSION	STATE INFORMATION COMMISSION
Powers of civil court during inquiry	- While inquiring, the Commission has the powers of a civil court in respect of the following matters: a) summoning and enforcing attendance of persons and compelling them to give oral or written evidence on oath and to produce documents or things; b) requiring the discovery and inspection of documents; c) receiving evidence on affidavit; d) requisitioning any public record from any court or office; e) issuing summons for examination of witnesses or documents; and f) any other matter which may be prescribed. - During the inquiry of a complaint, the Commission may examine any record which is under the control of the public authority and no such record may be withheld from it on any grounds. In other words, all public records must be given to the Commission during inquiry for examination.	
Submission of annual report	- The Commission submits an annual report to the Central Government on the implementation of the provisions of this Act. - The Central Government places this report before each House of Parliament.	- The Commission submits an annual report to the State Government on the implementation of the provisions of this Act. - The State Government places this report before the State Legislature.

CONDITIONS	CENTRAL INFORMATION COMMISSION	STATE INFORMATION COMMISSION
Powers to secure compliance of its decisions	The Commission has the power to secure compliance of its decisions from the public authority. This includes: a) providing access to information in a particular form; b) directing the public authority to appoint a Public Information Officer where none exists; c) publishing information or categories of information; d) making necessary changes to the practices relating to management, maintenance and destruction of records; e) enhancing training provision for officials on the right to information; f) seeking an annual report from the public authority on compliance with this Act; g) requiring the public authority to compensate for any loss or other detriment suffered by the applicant; h) imposing penalties under this Act; and i) rejecting the application.	

RIGHT TO INFORMATION ACT



The law covers all the levels of governance and is applicable not only to Union, State and Local Governments, but also to the recipients of Government's grants. However, there are some exceptions.

- 1 It **empowers citizens**, promotes transparency and accountability.
- 2 It is to **combat corruption** and make the democracy work for people in the real sense.
- 3 This gives the citizens the right to seek information, held by any authority or body or any institution of self government established or constituted by or under the Constitution.
- 4 Institution may be by any law made by the Parliament or a state legislature or bodies owned, controlled or substantially financed by the Center or the State.
- 5 NGOs **substantially financed** by the Govt fall within the definition of public authority.

MORE ON THE RTI ACT



- 3** Section 13 (5) of the Act equates salaries, allowances of CIC and IC to that of CEC and EC respectively. The salaries, allowances and other terms and conditions of service of CEC and EC are equal to the Judge of the Supreme Court.

- 1** Intelligence and security organisations specified in the second schedule are exempted, but it does not apply, if the information pertains to corruption and human rights allegations.
- 2** Right to Information include the right to
- Inspection of work, documents, records.
 - Taking notes, extracts or certified copies of documents.
 - Taking certified samples of material.
 - Obtaining information in the form of tapes, video cassettes or any other electronic mode.

As per Section-3 of the RTI Act, any Indian citizen can seek information under the Act.

RIGHT TO INFORMATION (AMENDMENT) BILL, 2019

SECTION 13 OF THE ACT

EXISTING PROVISIONS

- Central Chief Information Commissioner and Information Commissioners will have the term of five years or until the age of 65, whichever is earlier.

- Salaries, allowances and other terms of service of the Chief Information Commissioner shall be same as that of the Chief Election Commissioner.
- For the Information Commissioner, they shall be the same as that of the Election Commissioner.

CHANGES PROPOSED

It is replaced with “**for such term as may be prescribed by the Central Government**”.

The amendment proposes that the salaries, allowances and other terms of CIC and the ICs “**shall be such as may be prescribed by the Central Government**”.

RIGHT TO INFORMATION (AMENDMENT) BILL, 2019

SECTION 16 OF THE ACT

EXISTING PROVISIONS

- It deals with the state level Chief Information Commissioners and Information Commissioners.
- It sets the term for state-level CICs and ICs at five years or 65 years of age, whichever is earlier.
- It prescribes salaries, allowances of state Chief Information Commissioner as that of the Election Commissioner, and for the State Information Commissioners as that of the Chief Secretary to the State Government.

CHANGES PROPOSED

These appointments should be for **“such term as may be prescribed by the Central Government”**.

The amendment proposed that **“these shall be such as may be prescribed by the Central Government”**.

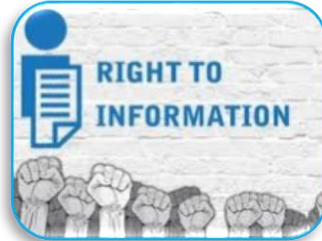
WHAT IS THE GOVERNMENT VIEWPOINT?



- It is to correct certain anomalies in the RTI Act, it does not dilute the Act in anyway and it was passed in a hurry in 2005.
- CIC has been given the **status of a Supreme Court Judge**, but his **judgments can be challenged in the High Courts**.
- RTI Amendments would strengthen the overall RTI structure.

- Chief Election Commissioner and Election Commissioners have salaries of a Supreme Court Judge. These bring CIC and ICs on par with apex court judges.
- But the **functions carried out by the Election Commission of India and the Central and State Information Commissions are totally different**.
- **Election Commission of India is a Constitutional body, Central Information Commission and State Information Commissions are statutory bodies established under the Right to Information Act, 2005.**

WHAT THE OPPONENTS SAY?



- The terms of appointment, salaries and tenures of the CIC and Information Commissioners, which can be decided by the Central Government, on case to case basis will **take away the independence of RTI Act.**
- The terms and conditions of the appointment of Commissioners in the States can be framed by the Centre. This will be **assault on the idea of federalism.**

- The separation of powers is a concept, which underscores independence and is vital to democratic checks and balances. When **power is centralised** and the freedom of expression is threatened, **democracy will be affected.**
- The Commission will lose its independence and will function **like a Department of the Central Government.**

The need of the hour is the Government should take into account the concerns of the experts and should arrive at a amicable solution, which ensures sufficient independence to the Commission.

CENTRAL VIGILANCE COMMISSION



1 The Central Vigilance Commission (CVC) is the main agency for preventing corruption in the Central government.

2 It was established in **1964** by an **executive resolution** of the Central government.

3 Its establishment was recommended by the **Santhanam Committee** on Prevention of Corruption (1962–64).

4 Thus, originally the CVC was neither a constitutional body nor a statutory body.

5 Later, in **2003**, the Parliament enacted a law conferring **statutory status** on the CVC.

COMPOSITION



1 The CVC is a multi-member body consisting of a Central Vigilance Commissioner (chairperson) and not more than two vigilance commissioners.

2 They are appointed by the **President** by **warrant under his hand and seal** on the recommendation of a **three-member committee** consisting of the prime minister as its head, the Union minister of home affairs and the Leader of the Opposition in the Lok Sabha.

3 They hold office for a term of **four** years or until they attain the age of **65-years**, whichever is earlier.

4 After their tenure, they are **not eligible for further employment** under the Central or a state government.

CENTRAL VIGILANCE COMMISSION

REMOVAL BY PRESIDENT



- 1 The president can remove the Central Vigilance Commissioner or any vigilance commissioner from the office under the following circumstances:
 - a) If he is adjudged an **insolvent**; or
 - b) If he has been **convicted of an offence** which (in the opinion of the Central government) involves a moral turpitude; or
 - c) If he engages, during his term of office, in any **paid employment** outside the duties of his office; or
 - d) If he is in the opinion of the President, unfit to continue in office by reason of **infirmity of mind or body**; or
 - e) If he has acquired such **financial or other interest** as is likely to affect prejudicially his official functions.

CENTRAL VIGILANCE COMMISSION

REMOVAL BY PRESIDENT

2

In addition to these, the president can also remove the Central Vigilance Commissioner or any vigilance commissioner on the ground of proved **misbehaviour or incapacity**.

3

However, in these cases, the president has to refer the matter to the Supreme Court for an enquiry.

4

If the Supreme Court, after the enquiry, upholds the cause of removal and advises so, then the president can remove him.

5

He is deemed to be guilty of **misbehaviour**, if he –

- a) Is concerned or interested in any contract or agreement made by the Central government, or
- b) Participates in any way in the profit of such contract or agreement or in any benefit or emolument arising therefrom otherwise than as a member and in common with the other members of an incorporated company.

CENTRAL VIGILANCE COMMISSION

SALARY AND ALLOWANCES



The salary, allowances and other conditions of service of the Central Vigilance Commissioner are similar to those of the **Chairman of UPSC** and that of the vigilance commissioner are similar to those of a **member of UPSC**. But they cannot be varied to his disadvantage after his appointment.



CENTRAL VIGILANCE COMMISSION

FUNCTIONS OF CVC

- 1 To inquire or cause an inquiry or investigation to be conducted on a reference made by the Central government wherein it is alleged that a public servant being an employee of the Central government or its Authorities, has committed an offence under the Prevention of Corruption.



- 2 To inquire any category of officials wherein it is alleged that he has committed an offence under the Prevention of Corruption Act, 1988:
 - Members of all-India services serving in the Union and Group 'A' officers of the Central government
 - Specified level of officers of the authorities of the Central government.



CENTRAL VIGILANCE COMMISSION

FUNCTIONS OF CVC



3 To exercise superintendence over the functioning of the Delhi Special Police Establishment (CBI) insofar as it relates to the investigation of offences under the Prevention of Corruption Act, 1988.

4 To give directions to the Delhi Special Police Establishment (CBI) for superintendence insofar as it relates to the investigation of offences under the Prevention of Corruption Act, 1988.

5 To review the progress of investigations conducted by the Delhi Special Police Establishment into offences alleged to have been committed under the prevention of Corruption Act, 1988.

CENTRAL VIGILANCE COMMISSION

FUNCTIONS OF CVC



- 6 To review the progress of applications pending with the competent authorities for sanction of prosecution under the Prevention of Corruption Act, 1988.
- 7 To tender advise to the Central government and its authorities on such matters as are referred to it by them.
- 8 To exercise superintendence over the vigilance administration in the ministries of the Central government or its authorities.

CENTRAL VIGILANCE COMMISSION

FUNCTIONS OF CVC



- 9 To undertake an inquiry into complaints received under the Public Interest Disclosure and Protection of Informers' Resolution and recommend appropriate action.

- 10 The Central Government is required to consult the CVC in making rules and regulations governing the vigilance and disciplinary matters relating to the members of Central Services and All-India Services.

- 11 The Central Vigilance Commission has been notified as a specific authority to receive information relating to suspicious transactions under the Prevention of Money Laundering Act, 2002.

CENTRAL VIGILANCE COMMISSION

The jurisdiction of the CVC extends to the following:

- 1** Members of All India Services serving in connection with the affairs of the Union and Group A officers of the Central Government.
- 2** Officers of the rank of Scale V and above in the Public Sector Banks.
- 3** Officers in Grade D and above in Reserve Bank of India, NABARD and SIDBI.
- 4** Chief Executives and Executives on the Board and other officers of E-8 and above in Schedule 'A' and 'B' Public Sector Undertakings.
- 5** Chief Executives and Executives on the Board and other officers of E-7 and above in Schedule 'C' and 'D' Public Sector Undertakings.
- 6** Managers and above in General Insurance Companies.
- 7** Senior Divisional Managers and above in Life Insurance Corporation.
- 8** Officers drawing salary of Rs. 8700/- per month (pre-revised) and above on Central Government D.A. pattern, as may be revised from time to time, in societies and local authorities owned or controlled by the Central Govt.

WE EXPRESS OUR
SINCERE THANKS
FOR VIEWING THIS VIDEO

Presented by



Learning Space

For Suggestions:

suggestions@learningspace.in

To Contact us:

info@learningspace.in

For Information:

info.learningspacedigital@gmail.com

Visit us at:

www.learningspacedigital.com

0866 244 44 72

98499 42299

94415 27588